

Smt. Shiv Devi Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 May 2014 · Writ-C No. 25138 of 2014 · **Writ dismissed; petitioner relegated to clause 6.5(b).**

HEADNOTE

A writ challenging an electricity bill as inflated because the meter is defective is not entertainable; the consumer has an alternative remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Shiv Devi Tiwari petitioned the Allahabad High Court against an electricity consumption bill, alleging that a defective meter was causing inflated demands. Counsel for the distribution licensee (respondents 2 to 4) accepted notice and submitted that a challenge to the accuracy of the bills lay under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, and that the petitioner could approach the designated authority. The Division Bench heard the parties on 2 May 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing-accuracy-alternative-remedy

HOLDING

A writ petition challenging the correctness of an electricity bill on the plea that the meter is defective and inflated bills are being raised is not liable to be entertained, because clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides an alternative remedy to approach the competent authority for redressal of that grievance. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging an electricity bill as inflated because the meter is defective is not entertainable; the consumer has an alternative remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND WHETHER THE METER WAS DEFECTIVE

The Court did not examine the bill or the meter on merits; the writ was dismissed solely for existence of the clause 6.5(b) remedy. ¶ 1